

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Election Appeal No.1105 of 2024

Jan Muhammad Ramzan **Versus** Returning Officer and another

Sr. No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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06.1.2024 M/s. Muhammad Irfan, Wajid Ali and Sibghat Ullah Khan, Advocates for the appellant along with appellant, proposer and seconder in person for appellant.
Mr. Imran Arif Ranjha, Legal Advisor and Muhammad Haroon Kasi, Director Law, Election Commission of Pakistan with Muhammad Ehsan ul Haq, R.O. PP-146 Lahore-II for the respondents.

 This appeal under section 63 of the Elections Act, 2017 assails order dated 30.12.2023 of the Returning Officer whereby the nomination papers of the appellant as a candidate for PP-146 Lahore-II were rejected.

2. The tenor of the order shows that the principal basis upon which the nomination papers were rejected as recorded in the order is to the effect that the genuineness of the signatures of the candidate, proposer and seconder could not be ascertained. Returning Officer present in Court has ascertained the signatures of all three i.e. candidate, proposer and seconder who was asked to be present in person in response to the undertaking of the learned counsel for the appellant to produce all three if afforded some time.

3. The Returning Officer while recording his statement that he is satisfied as to the genuineness of the signatures of the candidate, proposer and seconder was asked by the Court if this was the only basis upon which the papers were rejected who in response has vaguely referred to his order to suggest that another objection

had come to fore. On being asked to specify this he submits that in the declaration against item No.3 of appellant's nomination papers no particulars of bank account have been provided for purposes of documenting election expenses.

4. Learned Legal Advisor Election Commission of Pakistan was asked to assist on this aspect. He submits that the pertinent provision is section 60(2)(b) as amended by Elections Amendment (Act), 2023 and obligates the candidate to provide bank account details at the point of scrutiny of nomination papers. He submits that earlier this was at the point of filing of nomination papers but the legislature in its wisdom created some elasticity to incorporate the cut-off point to be the date of scrutiny of the nomination papers. The provision of law as it now exists on the statute book has been perused. It obligates the candidate to enter a declaration that "before the date fixed for scrutiny of nomination papers" the candidate "will open an exclusive account or dedicate an existing account, with a scheduled bank for the purpose of election expenses" and "to attach statement of the said bank account with the nomination paper, starting with entries of seven days prior to the election schedule".

5. Learned counsel states that a bank account already existed which was statedly dedicated by the appellant for election expenses but by sheer bona fide inadvertence the details could not be incorporated. He has produced a statement of account No.0296-0981-006858-01-0 at Bank Al Habib Limited, Fruit Market LHR-0296, Fruit Market, Lahore in the name of some concern of which Jan Muhammad Ramzan appellant asserts to be the purported proprietor. He submits that this was a dormant account which has been reactivated for purposes of

documenting/accounting for election expenses. A certified copy of the bank statement shows that the opening balance in the said account of Rs.2,774.97 was recorded on 07.12.2023 which is seven days prior to the announcement of the election schedule i.e. 15.12.2023.

6. Certified copy of the account statement is handed over to the Returning Officer while photocopy is being retained on the file of the Tribunal. The primary basis of opening such an account as given at section 134 of the Elections Act, 2017 is to account for election expenses as certain ceiling of expenses has to be maintained by the candidates in conducting their campaign and making expenses related to the elections. From the account statement it is evident that an account had already been dedicated, therefore, mere non-mentioning in the form appears to be a deficiency which could have been rectified by entering the detail of the account in the said column by the Returning Officer on appellant being given an opportunity which appears to not have been done. In Yasir Aftab v. Irfan Gull and others (2023 SCMR 206) it has been held to the effect that scrutiny is a two steps process and that the Returning Officer is vested with the discretion to even attend to curing of certain substantial defects if they can be forthwith removed by the appellant on being called to do so. The order of the Returning Officer is silent on this aspect as the omission appeared to exist in the mind of the Returning Officer but did not get reduced in the form of a reason recorded and has only been verbally articulated in Court.

7. In immediate and forthwith response to it upon being confronted with this omission learned counsel for the appellant has produced a copy of the bank statement. The defect as such stands cured. All Returning Officers

are expected to exercise structured discretion as laid down by the principals enunciated by the superior courts in the matter which integrates the values of fairness, due process and rule of law and, as such, are expected to ensure that the edges of reasons upon which rights of the subjects are carved in black and white and duly communicated to them. The order of the Returning Officer being legally untenable is set aside. The nomination papers are accepted. The concerned Returning Officer is, accordingly, directed to reflect the name of the appellant in the revised list of validly nominated candidates in discharge of the mandate of section 64(3) of the Elections Act, 2017.

8. Appeal **accepted**.

(RASAAL HASAN SYED)
JUDGE

APPROVED FOR REPORTING

JUDGE

Shahzad